Wheare: "Constitutional government means something more than a government according to the terms of a constitution. It means government according to rule as opposed to arbitrary government; it means government limited by the terms of a constitution, not government limited only by the desires and capacities of those who exercise power"[14].

Ybema: "A form of government can only be classified as constitutional when the rulers are subject to a body of rules and principles, which limit the exercise of their power. Constitutional government is the antithesis of arbitrary rule"[15].

3. Elements

The constitutional scholar, Louis Henkin, identified eight elements (features or principles) of constitutionalism. These are mentioned below[16]:

1. Popular sovereignty
2. Rule of law
3. Democratic government (responsible and accountable government)
4. Separation of powers (checks and balances)
5. An independent judiciary
6. Civilian control of the military
7. Police governed by law and judicial control
8. Respect for individual rights

[1]Gilchrist, R.N., Principles of Political Science, 1961, p. 211.

[2]Gettell, R.G., Political Science, 1956, p. 244.

[3]Wheare, K.C., Modern Constitutions, 1956, p. 1.

[4]Wade and Phillips, Constitutional Law, 1965, p. 1.

[5]Elliot Bulmer, What is a Constitution? Principles and Concepts, International IDEA Constitution – Building Primer 1, Second Edition, 2017, International Institute for Democracy and Electoral Assistance, pp. 6–7.

[6]Bryce, J., Studies in History and Jurisprudence, Volume 1, p. 127.

[7]Same as footnote 5 above, pp. 9–10.

[8]Mamta Rao, Constitutional Law, Second Edition, EBC Publishing Ltd., Lucknow, 2021, p. 8.

[9]Ibid.

[10]Kashyap, Dr. Subhash C., Constitutional Law of India, Second Edition, Volume 1, Universal Law Publishing, Gurgaon, 2015, p. 7.